

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Jodana Mohanadh v. Sivayogachelvan Thillainathan

BEFORE: MASTER R.A. MUIR

COUNSEL: J. Desai for the moving party/plaintiff
C. Stewart for the responding party/defendant

REASONS FOR DECISION

[1] The plaintiff brings this motion pursuant to Rule 2.03 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194 (the “Rules”) for an order relieving her of the obligation to attend an oral examination for discovery. Instead, the plaintiff submits, an examination for discovery by way of written questions and answers in accordance with the procedure under Rule 35 is appropriate in the circumstances of this action. The defendant opposes. He has elected to conduct his examination for discovery of the plaintiff by way of an oral examination as is his *prima facie* right under Rule 31.02.

[2] This is a slip and fall action. On August 18, 2007, the plaintiff was a guest at premises owned by the defendant and located at 31 Antelope Drive in the City of Toronto (the “Property”). It is alleged in the statement of claim that the plaintiff was walking along a pathway at the side entrance of the Property when she tripped and fell over piled soil and concrete blocks. In his examination for discovery the defendant acknowledges that his spouse was a witness to the accident. It appears that photographic evidence exists of the condition of the site of the accident on or about the date it happened.

[3] The plaintiff alleges that as a result of the accident, she suffered serious injuries including a displaced fracture of her left ankle and a sprain or fracture of the right ankle. The plaintiff is claiming general damages and damages for loss of income and out of pocket expenses. The defendant has denied liability and in the alternative claims that the plaintiff was contributorily negligent. He also takes issue with the quantum of the damages claimed by the plaintiff.

[4] The plaintiff argues that her medical condition makes oral examination for discovery inappropriate in the circumstances of this case. The plaintiff suffers from schizophrenia, a severe and chronic mental illness. She was diagnosed with this condition approximately eight years ago at the age of 14. Since September of 2008 she has been under the regular care of Dr. Stanley

Barron, a Consultant Psychiatrist affiliated with the Rouge Valley Health System. Dr. Barron has written two letters and one report in support of the plaintiff's position on this motion.

[5] Dr. Barron's letters and report include the following observations and opinions regarding the plaintiff's condition insofar as it relates to this litigation and the requirement for her to attend at an oral examination for discovery:

- she has marked functional difficulties;
- she is unable to interact with others or function, other than in a marginal way, outside of the family environment;
- her current symptomatology includes impaired attention, impaired concentration, poor memory, false (delusional) thinking and intermittent hallucinations;
- she has extremely poor communication skills;
- although she currently attends York University she has absolutely no interaction with her instructors or other students;
- her thought process is disorganized and she is unable to hold a conversation with Dr. Barron or other hospital staff beyond a few utterances from time to time;
- she would not be able to manage adequately in an oral examination for discovery or respond or interact as necessary in such an examination;
- she would not be able to handle the stress of an oral examination for discovery;
- the oral examination process would significantly increase her anxiety and likely increase her symptomatology;
- Dr. Barron could not say that the process would cause ongoing harm.

[6] The plaintiff acknowledges that the defendant has a *prima facie* right to an oral examination for discovery. However, in rare cases there are exceptions to that right and this is one of those cases. Under Rule 2.03, the court has the power to dispense with compliance with any rule in the interest of justice. A party seeking to avoid attendance at an oral examination for discovery for medical reasons has the onus of providing the court with "persuasive" or "compelling" medical evidence of a real potential that the party could suffer psychological damage. See *Kidd v. Lake*, [1998] O.J. No. 4078 (G.D.) at paragraphs 4 and 14. This principle is really a refinement of the general proposition that a party will be compelled to submit to an oral examination for discovery unless a valid reason exists for refusing to make such an order. See *Barnes v. Kirk*, [1968] 2 O.R. 213 (C.A.) at 216. I also accept the comments of Steele J. about the importance of discovery as set out in *McGowan v. Haslehurst* (1977), 17 O.R. (2d) 440 (H.C.) at 441.

[7] I have considered and relied on these principles in deciding this motion.

[8] Having considered the evidence before me and the submissions of counsel, I have come to the conclusion that this is one of those rare cases where a party should be excused from oral discovery. The medical evidence before me clearly establishes that the plaintiff has a very severe and chronic mental illness. Her treating psychiatrist is clear in his view that her attendance at an oral examination for discovery would increase her anxiety and likely increase her symptomatology. When considered as a whole, I view Dr. Barron's observations and opinions as evidence of a real potential that the plaintiff could suffer psychological damage as a result. The defendant took exception to the court relying on Dr. Barron's letters and report as they were not in the form of an affidavit from him but rather appended to an affidavit sworn by one of the plaintiff's lawyers. I am of the view that such direct evidence is not necessary in these circumstances. It is clear the Dr. Barron's letters and report were prepared solely for the purpose of directly addressing the issues on this motion. They are supported by copies of his notes and records covering the entire period of his treatment of the plaintiff. See *Kidd* at paragraph 28.

[9] Moreover, there would appear to be a reasonable alternative to the risk an oral discovery poses to the plaintiff, namely examination for discovery by written questions and answers. While I readily acknowledge that oral discovery is generally the preferred procedure, I do not see significant prejudice to the defendant in the circumstances of this action. This is not a complicated matter. It appears to be a straightforward slip and fall case involving an assessment of liability and a quantification of damages. The plaintiff was not the only witness to the accident and she has provided some photographic evidence of the condition of the Property at the time of her accident. In addition, the defendant will almost certainly be entitled to a medical examination of the plaintiff under section 105 of the *Courts of Justice Act*, R.S.O. 1990, c. C.43. Finally, I would note that under Rule 35.04(3) where the court is satisfied that written answers are evasive, unresponsive or otherwise unsatisfactory, the court may order an oral examination. The fact that I have chosen not to order oral discovery on the basis of the record before me on this motion is not to be taken as a bar to the defendant seeking relief under Rule 35.04(3).

[10] While I have considered the authorities relied upon by the defendant, I am of the view that they largely turn on the motion court's assessment of the specific facts and evidence before it in each case and not on questions of principle.

[11] I therefore order that the plaintiff's examination for discovery take place by way of written questions and answers in accordance with Rule 35.

[12] This is a motion where it is appropriate to deny the successful party her costs. The plaintiff is seeking an indulgence from the court and an order excusing her from her obligation to submit to an oral examination for discovery. While I am satisfied that this is an appropriate case to make such an order I do not view the defendant's opposition to such relief as unreasonable. There will be no order as to the costs of this motion.

Master R.A. Muir

DATE: May 5, 2010